

IN THE SENATE

SENATE BILL NO. 1302

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO SINGLE COUNTYWIDE HIGHWAY DISTRICTS; AMENDING SECTION 40-1404A, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE ELECTION OF SINGLE COUNTYWIDE HIGHWAY DISTRICT COMMISSIONERS; AMENDING SECTION 34-625, IDAHO CODE, TO REVISE A PROVISION REGARDING A CERTAIN DECLARATION OF CANDIDACY AND TO MAKE A TECHNICAL CORRECTION; AMENDING SECTION 34-625A, IDAHO CODE, TO REVISE A PROVISION REGARDING A CERTAIN DECLARATION OF CANDIDACY AND TO MAKE A TECHNICAL CORRECTION; AMENDING SECTION 34-702, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-702A, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-703, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-704, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-705, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-706, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 34-708, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS AND TO MAKE A TECHNICAL CORRECTION; AMENDING SECTION 34-712, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-714, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-715, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-905A, IDAHO CODE, TO REVISE PROVISIONS REGARDING CERTAIN HIGHWAY DISTRICT BALLOTS; REPEALING SECTION 34-905A, IDAHO CODE, RELATING TO NONPARTISAN BALLOTS FOR ELECTION OF HIGHWAY DISTRICT COMMISSIONERS AND PLURALITY REQUIRED FOR ELECTION; AMENDING CHAPTER 9, TITLE 34, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 34-905A, IDAHO CODE, TO PROVIDE FOR NONPARTISAN BALLOTS FOR ELECTION OF CERTAIN HIGHWAY DISTRICT COMMISSIONERS AND TO REQUIRE PLURALITY FOR ELECTION; AND DECLARING AN EMERGENCY AND PROVIDING EFFECTIVE DATES.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 40-1404A, Idaho Code, be, and the same is hereby amended to read as follows:

40-1404A. ELECTIONS, TERMS AND SALARIES OF COMMISSIONERS IN CERTAIN COUNTYWIDE HIGHWAY DISTRICTS. (1) In countywide highway districts located in a county with a population of more than two hundred thousand (200,000) persons in which the voters have chosen to establish a countywide highway district at a previous election, the county shall be divided by the county commissioners immediately upon the effective date of this act into five (5) subdistricts, which shall be as nearly equal in population as practicable.

1 No precincts shall be divided. A highway district commissioner shall be a
 2 resident of the subdistrict ~~which~~ that he represents. Voters ~~in each sub-~~
 3 ~~district~~ shall vote only for one (1) candidate seeking to represent ~~that~~
 4 each subdistrict. County commissioners, mayors and city council members
 5 shall not be eligible to hold office as a countywide highway district com-
 6 missioner. At the election held in 1998, commissioners representing subdis-
 7 tricts two and five shall be elected for two (2) year terms and commissioners
 8 representing subdistricts three and four shall be elected for four (4) year
 9 terms. Thereafter, all commissioners shall be elected for four (4) year
 10 terms. Any incumbent in office on the effective date of this act may complete
 11 the term to which they were elected and shall represent the subdistrict in
 12 which they reside. Any incumbent in office on the effective date of this act
 13 whose term expires on January 1, 2000, shall retain that office until January
 14 1, 2000, shall be assigned the subdistrict in which they reside by the county
 15 commissioners, which subdistrict shall be numbered one as provided in this
 16 section, and that commissioner need not stand for election in 1998.

17 (2) A qualified voter of the countywide highway district shall be eli-
 18 gible to vote for a each of the countywide highway district commissioner re-
 19 ~~siding in the elector's subdistrict commissioner offices~~, and the election
 20 shall be conducted as provided by Idaho statutes relating to holding general
 21 elections at the county level.

22 (3) Beginning with the elections of 2028, the election of highway dis-
 23 trict commissioners in a highway district subject to the provisions of this
 24 section shall include primary elections pursuant to the provisions of chap-
 25 ter 7, title 34, Idaho Code.

26 (4) The highway commissioners shall take office on January 1 of the year
 27 immediately following their election, and each may be compensated in accor-
 28 dance with the provisions of section 40-1314, Idaho Code, or receive a salary
 29 not to exceed one thousand two hundred dollars (\$1,200) per calendar month,
 30 with the exception of the president of the highway commissioners who may re-
 31 ceive a salary not to exceed one thousand four hundred dollars (\$1,400) per
 32 calendar month.

33 SECTION 2. That Section 34-625, Idaho Code, be, and the same is hereby
 34 amended to read as follows:

35 34-625. ELECTION OF HIGHWAY DISTRICT COMMISSIONERS IN SINGLE COUNTY-
 36 WIDE DISTRICTS -- QUALIFICATIONS -- DECLARATION OF CANDIDACY. (1) In each
 37 general election, highway district commissioners in single countywide dis-
 38 tricts shall be elected as provided for in section 40-1404, Idaho Code.

39 (2) No person shall be elected to the office of highway district commis-
 40 sioner unless he shall have attained the age of twenty-one (21) years at the
 41 time of his election, is a citizen of the United States, and shall be a res-
 42 ident of the highway district commissioner's subdistrict for which he seeks
 43 office.

44 (3) Each candidate shall file a declaration of candidacy with the
 45 county clerk during the time period provided in section 34-1404, Idaho Code.
 46 Each declaration of candidacy shall also state the candidate's political
 47 party affiliation or status as unaffiliated and bear the following words:
 48 "I am a resident within the boundaries of Highway District Commissioner's
 49 Subdistrict Number....."

1 (4) Each candidate who files a declaration of candidacy shall at the
 2 same time pay a filing fee of ten dollars (\$10.00), which shall be deposited
 3 in the county current expense fund.

4 SECTION 3. That Section 34-625A, Idaho Code, be, and the same is hereby
 5 amended to read as follows:

6 34-625A. ELECTION OF HIGHWAY DISTRICT COMMISSIONERS IN CERTAIN SINGLE
 7 COUNTYWIDE DISTRICTS -- QUALIFICATIONS -- DECLARATION OF CANDIDACY. (1) In
 8 each general election, highway district commissioners in single countywide
 9 districts shall be elected as provided for in section 40-1404A, Idaho Code.

10 (2) No person shall be elected to the office of highway district commis-
 11 sioner unless he shall have attained the age of twenty-one (21) years at the
 12 time of his election, is a citizen of the United States, and shall be a res-
 13 ident of the highway district commissioner's subdistrict for which he seeks
 14 office.

15 (3) Each candidate shall file a declaration of candidacy with the
 16 county clerk during the time period provided in section 34-1404, Idaho Code.
 17 Each declaration of candidacy shall also state the candidate's political
 18 party affiliation or status as unaffiliated and bear the following words:
 19 "I am a resident within the boundaries of Highway District Commissioner's
 20 Subdistrict Number....."

21 (4) Each candidate who files a declaration of candidacy shall at the
 22 same time pay a filing fee of ten dollars (\$10.00), which shall be deposited
 23 in the county current expense fund.

24 SECTION 4. That Section 34-702, Idaho Code, be, and the same is hereby
 25 amended to read as follows:

26 34-702. REQUIREMENTS FOR WRITE-IN CANDIDATES AT PRIMARY. (1) In addi-
 27 tion to possessing all other qualifications, in order to become a candidate
 28 of a political party at the general election, those candidates whose names
 29 are written in at the primary election must:

30 (a) Receive at least the following number of write-in votes at the pri-
 31 mary election:

32 (i) One thousand (1,000) for any statewide office;

33 (ii) Five hundred (500) for a congressional district office;

34 (iii) Fifty (50) for a legislative district office; or

35 (iv) Five (5) for a county office or a single countywide highway
 36 district office pursuant to section 40-1404A, Idaho Code; and

37 (b) File a declaration of intent for that office, pursuant to section
 38 34-702A, Idaho Code.

39 (2) Candidates who are required to file with the secretary of state
 40 shall pay the filing fee required for that office no later than the deadline
 41 for filing a declaration of intent pursuant to section 34-702A, Idaho Code,
 42 or shall file a petition pursuant to section 34-626, Idaho Code.

43 (3) No write-ins shall be allowed for judicial office.

44 SECTION 5. That Section 34-702A, Idaho Code, be, and the same is hereby
 45 amended to read as follows:

1 34-702A. DECLARATION OF INTENT FOR WRITE-IN CANDIDATES. (1) No
 2 write-in vote for any office in a primary, special, or general election shall
 3 be counted unless a completed declaration of intent form has been filed indi-
 4 cating that the person desires the office and is legally qualified to assume
 5 the duties of said office if elected.

6 (2) The declaration of intent for write-in candidates for federal,
 7 state, or legislative district offices shall be filed with the secretary
 8 of state no later than 5:00 p.m. on the eleventh Friday before the primary
 9 election.

10 (3) The declaration of intent for write-in candidates for county
 11 office, single countywide highway district office pursuant to section
 12 40-1404A, Idaho Code, or party precinct committeeman office shall be filed
 13 with the county clerk no later than 5:00 p.m. on the ninth Friday before the
 14 primary election.

15 (4) For a write-in candidate for president, the declaration shall in-
 16 clude a certification of the write-in candidate's vice presidential and
 17 presidential electors, all of whom must be qualified to serve in their re-
 18 spective offices. The secretary of state shall prescribe the form for said
 19 declarations.

20 (5) In those counties that utilize optical scan ballots, an elector
 21 shall not place on the ballot a sticker bearing the name of a person or use any
 22 other method or device, except writing, to vote for a person whose name is not
 23 printed on the ballot.

24 SECTION 6. That Section 34-703, Idaho Code, be, and the same is hereby
 25 amended to read as follows:

26 34-703. NOMINATION AT PRIMARY. (1) All political party candidates for
 27 United States senator and representative in congress and all political party
 28 candidates for elective state, district, single countywide highway district
 29 pursuant to section 40-1404A, Idaho Code, and county offices, except can-
 30 didates for judicial office, at general elections shall be nominated at the
 31 primary elections, or shall have their names placed on the general election
 32 ballot as provided by law, and shall comply with the provisions of this act.

33 (2) All candidates for judicial office shall be nominated or elected at
 34 the primary election, as provided by section 34-1217, Idaho Code.

35 (3) Independent candidates shall not be voted on at primary elections.

36 SECTION 7. That Section 34-704, Idaho Code, be, and the same is hereby
 37 amended to read as follows:

38 34-704. DECLARATION OF CANDIDACY. (1) Any person legally qualified to
 39 hold such office is entitled to become a candidate and file a declaration of
 40 candidacy. All political party candidates shall declare their party affili-
 41 ation in their declaration of candidacy and shall be affiliated with a party
 42 at the time of filing. A candidate shall be deemed affiliated with the po-
 43 litical party if the candidate submits a party affiliation form along with
 44 the declaration of candidacy to the appropriate filing official. The fil-
 45 ing official shall reject any declaration of candidacy for partisan office
 46 in a primary election from candidates who are not affiliated with a political

1 party. Candidates for nonpartisan office shall file during the period pro-
2 vided for in this section.

3 (2) Each political party candidate for federal, state, or legislative
4 district office shall file a declaration of candidacy with the secretary of
5 state's office between 8:00 a.m. on the thirteenth Monday before the primary
6 election and 5:00 p.m. on the twelfth Friday before the primary election.

7 (3) Each political party candidate for county office, single county-
8 wide highway district office pursuant to section 40-1404A, Idaho Code, or
9 precinct committeeman office shall file a declaration of candidacy with the
10 county clerk's office between 8:00 a.m. on the twelfth Monday before the
11 primary election and 5:00 p.m. on the tenth Friday before the primary elec-
12 tion.

13 (4) Candidates who file a declaration of candidacy under a party name
14 and are not nominated at the primary election shall not be allowed to appear
15 on the general election ballot under any other political party name or as an
16 independent candidate.

17 (5) Independent candidates shall file their declaration of candidacy
18 in the manner provided in section 34-708, Idaho Code.

19 (6) All information in declarations of candidacy shall be made publicly
20 available upon request, except that the Idaho residential street address and
21 telephone number of a judicial officer may be exempt from disclosure pur-
22 suant to sections 19-6202 and 74-106(30), Idaho Code.

23 SECTION 8. That Section 34-705, Idaho Code, be, and the same is hereby
24 amended to read as follows:

25 34-705. WITH WHOM DECLARATIONS FILED. (1) All candidates for county
26 offices and single countywide highway district offices pursuant to section
27 40-1404A, Idaho Code, whether political party candidates or independent
28 candidates, and all political party candidates for precinct offices shall
29 file their declarations of candidacy with the county clerk of their respec-
30 tive counties. All candidates for district, state and federal offices shall
31 file their declarations of candidacy with the secretary of state.

32 (2) The secretary of state shall certify to the county clerks, no later
33 than 5:00 p.m. on the tenth Friday before the primary election, the names of
34 the political party candidates who filed for federal, state, and legislative
35 district offices and are qualified for placement on the ballot.

36 (3) The secretary of state shall certify the name of a candidate being
37 appointed by the appropriate central committee pursuant to section 34-714,
38 Idaho Code, by no later than the next business day after the appointment is
39 received in the secretary of state's office, if received after the certifi-
40 cation of candidates to the county clerks under subsection (2) of this sec-
41 tion.

42 SECTION 9. That Section 34-706, Idaho Code, be, and the same is hereby
43 amended to read as follows:

44 34-706. NOTIFICATION TO PARTIES. Within three (3) days after the dead-
45 line for filing declarations of political party candidacy, the county clerk
46 shall notify the county central committee of each political party of the can-
47 didates who have filed for county offices, single countywide highway dis-

1 trict offices pursuant to section 40-1404A, Idaho Code, and precinct offices
2 under the party name and are qualified.

3 Within three (3) days after the deadline for filing declarations of po-
4 litical party candidacy, the secretary of state shall notify the legislative
5 district central committee of each political party of the legislative candi-
6 dates who have filed under the party name and are qualified.

7 Within three (3) days after the deadline for filing declarations of po-
8 litical party candidacy, the secretary of state shall notify the state cen-
9 tral committee of each political party of the candidates who have filed for
10 federal and state offices under the party name and are qualified.

11 SECTION 10. That Section 34-708, Idaho Code, be, and the same is hereby
12 amended to read as follows:

13 34-708. INDEPENDENT CANDIDATES. (1) No person may offer himself as an
14 independent candidate at the primary election.

15 (2) Any person who desires to offer himself as an independent candi-
16 date for federal, state, district, single countywide highway district pur-
17 suant to section 40-1404A, Idaho Code, or county office may do so by com-
18 plying strictly with the provisions of this section. In order to be recog-
19 nized as an independent candidate, each such candidate must file with the
20 proper officer as provided by section 34-705, Idaho Code, a declaration of
21 candidacy as an independent candidate, during the period specified in sec-
22 tion 34-704, Idaho Code. Such declaration must state that he is offering
23 himself as an independent candidate, must declare that he has no political
24 party affiliation, and must declare the office for which he seeks election.
25 Each such declaration must be accompanied by a petition containing the fol-
26 lowing number of signatures of qualified electors:

27 (a) One thousand (1,000) for any statewide office;

28 (b) Five hundred (500) for any congressional district office;

29 (c) Fifty (50) for any legislative district office; or

30 (d) Five (5) for any county office or a single countywide highway dis-
31 trict office pursuant to section 40-1404A, Idaho Code.

32 (3) Signatures on the petitions required in this section shall be veri-
33 fied in the manner prescribed in section 34-1807, Idaho Code, on a form simi-
34 lar to that used for recall petitions under chapter 17, title 34, Idaho Code,
35 as prescribed by the secretary of state.

36 (4) If all of the requirements of this section have been met, the proper
37 officer shall cause the name of each independent candidate who has qualified
38 to be placed on the general election ballot, according to instructions of the
39 secretary of state.

40 SECTION 11. That Section 34-712, Idaho Code, be, and the same is hereby
41 amended to read as follows:

42 34-712. SAMPLE FORM FOR PRIMARY ELECTION BALLOTS. The secretary of
43 state shall provide the sample form of the primary election ballot to each of
44 the county clerks no later than the ninth Friday before the primary election.
45 The sample ballot shall contain the proper political party candidates to be
46 voted on within the county whose declarations were filed and certified in
47 the office of the secretary of state with instructions for the placing of po-

1 litical party candidates seeking the political party nomination for county
 2 offices, single countywide highway district offices pursuant to section
 3 40-1404A, Idaho Code, and precinct offices. If a county is within more than
 4 one (1) legislative district, the secretary of state shall provide a sample
 5 ballot for each legislative district that includes part of the county.

6 SECTION 12. That Section 34-714, Idaho Code, be, and the same is hereby
 7 amended to read as follows:

8 34-714. FILLING VACANCIES IN SLATE OF POLITICAL PARTY CANDIDATES
 9 OCCURRING PRIOR TO PRIMARY ELECTION. (1) Vacancies that occur before the
 10 primary election in the slate of candidates of any political party because
 11 of the death, disqualification for any reason, or withdrawal from the nom-
 12 ination process by the candidate shall be filled in the following manner if
 13 there is only one (1) candidate declared for that particular office:

14 (a) By the county central committee if the vacancy occurs for the office
 15 of precinct committeeman, ~~or for a county office, or a single countywide~~
 16 highway district office pursuant to section 40-1404A, Idaho Code.

17 (b) By the legislative district central committee if the vacancy occurs
 18 for the office of state representative or state senator.

19 (c) By the state central committee if the vacancy occurs for a federal
 20 or state office.

21 The county and legislative district central committee shall fill the
 22 vacancy within fifteen (15) days from the date the vacancy occurred. The
 23 state central committee shall fill the vacancy within thirty (30) days from
 24 the date the vacancy occurred, but no later than 5:00 p.m. on the eighth
 25 Friday before the primary election.

26 Any political party candidate so appointed by the proper central com-
 27 mittee must, in order to have his name on the primary ballot, file a declara-
 28 tion of candidacy and pay the required filing fee no later than 5:00 p.m. on
 29 the eighth Friday before the primary election.

30 (2) No central committee shall fill any vacancy that occurs after 5:00
 31 p.m. on the eighth Friday before the primary election. Vacancies that oc-
 32 cur after this date because of the death, disqualification for any reason, or
 33 withdrawal from the nomination process by the candidate shall be filled ac-
 34 cording to the provisions of section 34-715, Idaho Code.

35 (3) Vacancies that occur in a slate of candidates for precinct com-
 36 mitteeman after 5:00 p.m. on the eighth Friday before the primary election
 37 shall not be filled.

38 SECTION 13. That Section 34-715, Idaho Code, be, and the same is hereby
 39 amended to read as follows:

40 34-715. FILLING OF VACANCIES OCCURRING BEFORE OR AFTER PRIMARY ELEC-
 41 TION. (1) Vacancies that occur after 5:00 p.m. on the eighth Friday before a
 42 primary election, or after the primary election but before 5:00 p.m. on the
 43 eighth Friday before the general election in the slate of candidates of any
 44 political party because of the death or disqualification for any reason of a
 45 candidate, except candidates for precinct committeeman, shall be filled in
 46 the following manner if there is only one (1) candidate declared from the po-
 47 litical party for that particular office:

(a) By the county central committee if it is a vacancy by a candidate for a county office or a single countywide highway district office pursuant to section 40-1404A, Idaho Code.

(b) By the legislative district central committee if it is a vacancy by a candidate for the state legislature.

(c) By the state central committee if it is a vacancy by a candidate for a federal or a state office.

(d) If the party candidate for a particular office dies or is disqualified after 5:00 p.m. on the eighth Friday before the general election, such candidate's name shall remain on the ballot. If the deceased or disqualified candidate wins the general election, the resulting vacancy shall be filled pursuant to chapter 9, title 59, Idaho Code.

(2) The county and legislative district central committee shall fill the vacancy within fifteen (15) days from the date the vacancy occurred. The state central committee shall fill the vacancy within thirty (30) days from the date the vacancy occurred, but no later than 5:00 p.m. on the eighth Friday before the general election.

(3) Any political party candidate so appointed by the proper central committee must, in order to have his name on the general ballot, file a declaration of candidacy and pay the required filing fee no later than 5:00 p.m. on the eighth Friday before the general election.

(4) Vacancies that occur in a slate of candidates for precinct committeeman after 5:00 p.m. on the eighth Friday before the primary election shall not be filled.

SECTION 14. That Section 34-905A, Idaho Code, be, and the same is hereby amended to read as follows:

34-905A. ~~NONPARTISAN~~ BALLOTS FOR ELECTION OF HIGHWAY DISTRICT COMMISSIONERS -- PLURALITY REQUIRED FOR ELECTION. There shall be a single ~~nonpartisan~~ ballot for the election of highway district commissioners in each highway district. The ballot shall designate the highway district commissioners subdistrict, and the names of all candidates for that office shall be listed thereon. The ballot shall also contain the words: "Vote for One," followed by the names of the candidates for the office. For candidates running for highway district commissioner of a single countywide highway district office pursuant to section 40-1404A, Idaho Code, the ballot shall list the party affiliation or status as unaffiliated for each candidate as indicated on each candidate's declaration of candidacy. The candidate with the most votes shall be declared the successful candidate.

SECTION 15. That Section [34-905A](#), Idaho Code, be, and the same is hereby repealed.

SECTION 16. That Chapter 9, Title 34, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 34-905A, Idaho Code, and to read as follows:

34-905A. NONPARTISAN BALLOTS FOR ELECTION OF CERTAIN HIGHWAY DISTRICT COMMISSIONERS -- PLURALITY REQUIRED FOR ELECTION. There shall be a single nonpartisan ballot for the election of highway district commissioners in

1 each highway district. The ballot shall designate the highway district
2 commissioners subdistrict, and the names of all candidates for that office
3 shall be listed thereon. The ballot shall also contain the words: "Vote for
4 One," followed by the names of the candidates for the office. The candidate
5 with the most votes shall be declared the successful candidate. The provi-
6 sions of this section shall not apply to the election of commissioners of a
7 single countywide highway district organized pursuant to chapter 14, title
8 40, Idaho Code.

9 SECTION 17. An emergency existing therefor, which emergency is hereby
10 declared to exist, Sections 2, 3, and 14 of this act shall be in full force and
11 effect on and after passage and approval; Sections 1 and 4 through 13 of this
12 act shall be in full force and effect on and after July 1, 2026; and Sections
13 15 and 16 of this act shall be in full force and effect on and after January 1,
14 2027.